



Bill Number: H.B. 2874

Rogers Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Kaytie Sherman

FLOOR AMENDMENT EXPLANATION

- Adds an emergency clause.

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2874
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-934, Arizona Revised Statutes, is amended to
3 read:

4 16-934. Termination statement; filing; contents

5 A. A committee may terminate only when the committee treasurer
6 files a termination statement with the filing officer with whom the
7 committee's statement of organization was filed.

8 B. In the termination statement, the committee treasurer shall
9 certify under penalty of perjury that ~~at~~ EITHER of the following ~~apply~~
10 APPLIES:

11 1. THE COMMITTEE RECEIVED NO CONTRIBUTIONS.

12 2. THE COMMITTEE RECEIVED CONTRIBUTIONS AND ALL OF THE FOLLOWING

13 APPLY:

14 ~~1-~~ (a) The committee will no longer receive any contributions or
15 make any disbursements.

16 ~~2-~~ (b) The committee either:

17 ~~(a)~~ (i) Has no outstanding debts or obligations.

1 ~~(b)~~ (ii) Has outstanding debts or obligations, or both, that are
2 all more than five years old, and that the committee's creditors have
3 agreed to discharge the debts and obligations and have agreed to the
4 termination of the committee.

5 ~~3.~~ (c) Any surplus monies have been disposed of and that the
6 committee has no cash on hand.

7 ~~4.~~ (d) All contributions and expenditures have been reported,
8 including any disposal of surplus monies.

9 C. A filing officer may reject the termination statement if it
10 appears to the filing officer that the requirements in subsection B of
11 this section have not been satisfied.

12 D. After a termination statement is filed, a committee:

13 1. Is not required to file any subsequent campaign finance reports.

14 2. Shall have no further receipts or disbursements without filing a
15 new statement of organization.

16 E. A standing committee may terminate its activities in a
17 particular reporting jurisdiction, and remain active in other reporting
18 jurisdictions, by filing a statement of that intent with the filing
19 officer in each reporting jurisdiction.

20 Sec. 2. Section 16-937, Arizona Revised Statutes, is amended to
21 read:

22 16-937. Failure to file; penalties; notice; suspension

23 A. If a committee fails to timely file a complete report as
24 prescribed by articles 1, 1.1, 1.2, 1.3, 1.4, 1.5 and 1.6 of this chapter,
25 the filing officer shall send a written notice by ~~e-mail~~ EMAIL to the
26 committee within five days after the filing deadline that identifies the
27 late report, describes how fines accrue and identifies methods of payment.

28 B. A committee that fails to timely file a report shall pay the
29 filing officer a penalty of ~~ten dollars~~ \$10 for each day that the filing
30 is late during the first fifteen days after the filing deadline and
31 ~~twenty-five dollars~~ \$25 for each subsequent day that the filing is late.
32 Penalties accrue until the late report is filed[, EXCEPT THAT PENALTIES
33 SHALL NOT BE ASSESSED AND ANY ACCRUED PENALTIES ARE VOID IF THE COMMITTEE
34 AT ANY TIME CERTIFIES THAT IT RECEIVED NO CONTRIBUTIONS AND MADE NO
35 EXPENDITURES DURING THE REPORTING PERIOD TO WHICH THE UNTIMELY REPORT
36 CORRESPONDS].

37 C. If a committee fails to file a complete report within thirty
38 days after the filing deadline and after providing notice pursuant to
39 subsection A of this section, the filing officer may notify the
40 appropriate enforcement officer prescribed in this article.

41 D. For any political action committee or political party that fails
42 to file three consecutive complete reports, the filing officer shall send
43 by ~~e-mail~~ EMAIL to the committee a notice of temporary suspension and the
44 following apply:

45 1. On receipt, the committee's authority to operate in the
46 jurisdiction is temporarily suspended.

47 2. The notice shall state that failure to comply with all filing
48 and payment requirements within thirty days after the date of the notice
49 shall result in permanent suspension of the committee's authority to
50 operate in that jurisdiction.

1 E. After compliance with subsection D of this section, the filing
2 officer may permanently suspend the committee and shall notify the
3 committee by ~~e-mail~~ EMAIL and is not required to provide any further
4 notice. Permanent or temporary suspension does not eliminate a
5 committee's continuing obligation to file reports and pay any outstanding
6 and accruing penalties provided by law.

7 F. FOR A COMMITTEE THAT FILES A TERMINATION STATEMENT AS PRESCRIBED
8 BY SECTION 16-934, SUBSECTION B, PARAGRAPH 1 THAT STATES THAT THE
9 COMMITTEE RECEIVED NO CONTRIBUTIONS, THE FOLLOWING APPLY:

10 1. PENALTIES MAY NOT BE ASSESSED AGAINST AND MAY NOT ACCRUE AGAINST
11 THE COMMITTEE.

12 2. ANY PENALTIES THAT ARE ASSESSED OR THAT ACCRUE AGAINST A
13 COMMITTEE THAT SUBSEQUENTLY FILES A TERMINATION STATEMENT PURSUANT TO
14 SECTION 16-934, SUBSECTION B, PARAGRAPH 1 ARE DEEMED VOID RETROACTIVELY.

15 3. FOR ANY ENFORCEMENT ACTION INITIATED BY THE ENFORCEMENT OFFICER
16 AGAINST A COMMITTEE THAT SUBSEQUENTLY FILES A TERMINATION STATEMENT
17 PURSUANT TO SECTION 16-934, SUBSECTION B, PARAGRAPH 1, THE ENFORCEMENT
18 OFFICER IS DEEMED WITHOUT JURISDICTION AND IF THE MATTER IS BEFORE A
19 COURT, THE COURT SHALL DISMISS THE MATTER PROMPTLY.

20 G. FOR A COMMITTEE THAT HAS ACCRUED PENALTIES FOR UNTIMELY REPORTS
21 CORRESPONDING TO REPORTING PERIODS DURING WHICH THE COMMITTEE RECEIVED NO
22 CONTRIBUTIONS AND MADE NO EXPENDITURES, THE FOLLOWING APPLY:

23 1. PENALTIES MAY NOT BE ASSESSED AGAINST AND MAY NOT ACCRUE AGAINST
24 THE COMMITTEE IN CONNECTION WITH THOSE REPORTS.

25 2. ANY PENALTIES THAT ARE ASSESSED OR THAT ACCRUE AGAINST THE
26 COMMITTEE IN CONNECTION WITH THOSE REPORTS ARE DEEMED VOID RETROACTIVELY.

27 3. FOR ANY ENFORCEMENT ACTION INITIATED BY THE ENFORCEMENT OFFICER
28 AGAINST THE COMMITTEE IN CONNECTION WITH THOSE REPORTS, THE ENFORCEMENT
29 OFFICER IS DEEMED WITHOUT JURISDICTION AND IF THE MATTER IS BEFORE A
30 COURT, THE COURT SHALL DISMISS THE MATTER PROMPTLY.]

31 <<Sec. 3. Retroactivity

32 [This act applies retroactively to from and after December 31,
33 2021.]>>

34 <<Sec. 4. Emergency

35 {{This act is an emergency measure that is necessary to preserve the
36 public peace, health or safety and is operative immediately as provided by
37 law.}}>>

38 Enroll and engross to conform

39 Amend title to conform

WENDY ROGERS

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